

FL-22-000365 RAMOS VS RAMOS

County: stanislaus

Division: Family Law

Department: 25

Hearing date: 2026-06-22

Motion: Petitioner's Request for Order re Spousal Support, etc.—DENIED, without prejudice. Petitioner was granted an Order Shortening Time (OST) and the Court mandated personal service of Respondent. Moreover, the matter is post-judgment and therefore valid and timely individual party service of Respondent is jurisdictional. (Fam. Code, § 215(a).) If Petitioner does not appear and demonstrate good cause to continue the hearing to effectuate service, then the matter will be dropped and the temporary orders that were granted shall expire. That said, if both Petitioner and Respondent personally appear, and Respondent expressly waives any objection to notice and service, then the Court may entertain the merits. In that case, the Court previously granted Petitioner's request to order sale of the family home and ordered spousal support payable by Respondent to Petitioner in the amount of \$500/month. (Findings and Order After Hearing [FOAH], 6/2/2025, p. 2.) Then, after this, the parties came before the Court on September 3, 2025, and the Court approved the parties' stipulation to change the prior orders so that, instead of sale, Petitioner would refinance the family home to buy out Respondent's interest and would retain exclusive possession in the meantime. (FOAH, 9/3/2025, p. 2.) Petitioner's declaration does not explain, other than claiming "financial hardship," why the refinancing has not occurred and does not offer explanation as to the material change of circumstance that justifies modifying the permanent spousal support order currently in place. Should the merits be reached, these matters will need to be addressed by Petitioner. Administrative ADA Accommodations Locations and Contact Info Privacy Policy Attorney Resources Judicial Council Forms Court Calendars California Court Self-Help Center California Judicial Branch Public Resources Court Holidays Stanislaus County Employee Access Outlook Share Point Superior Court of California County of Stanislaus Judicial Branch of California Privacy Terms of Use © 2026

Source URL: <https://www.stanislaus.courts.ca.gov/online-services/tentative-rulings/family-law-tentative-rulings>

Source SHA-256: 99b780193ddcdb24365e0e2668de1c0e41cfd561992a36534a8c8349043f1763

FL-22-000365 – RAMOS VS RAMOS

Petitioner's Request for Order re Spousal Support, etc.—DENIED, without prejudice.

Petitioner was granted an Order Shortening Time (OST) and the Court mandated personal service of Respondent. Moreover, the matter is post-judgment and therefore valid and timely individual party service of Respondent is jurisdictional. (Fam. Code, § 215(a).)

If Petitioner does not appear and demonstrate good cause to continue the hearing to effectuate service, then the matter will be dropped and the temporary orders that were granted shall expire.

That said, if both Petitioner and Respondent personally appear, and Respondent expressly waives any objection to notice and service, then the Court may entertain the merits. In that case, the Court previously granted Petitioner's request to order sale of the family home and ordered spousal support payable by Respondent to Petitioner in the amount of \$500/month. (Findings and Order After Hearing [FOAH], 6/2/2025, p. 2.) Then, after this, the parties came before the Court on September 3, 2025, and the Court approved the parties' stipulation to change the prior orders so that, instead of sale, Petitioner would refinance the family home to buy out Respondent's interest and would retain exclusive possession in the meantime. (FOAH, 9/3/2025, p. 2.) Petitioner's declaration does not explain, other than claiming "financial hardship," why the refinancing has not occurred and does not offer explanation as to the material change of circumstance that justifies modifying the permanent spousal support order currently in place. Should the merits be reached, these matters will need to be addressed by Petitioner.

Administrative

[ADA Accommodations](#)

[Locations and Contact Info](#)

[Privacy Policy](#)

[Attorney Resources](#)

[Judicial Council Forms](#)

[Court Calendars](#)

[California Court](#)

[Self-Help Center](#)

[California Judicial Branch](#)

[Public Resources](#)

[Court Holidays](#)

[Stanislaus County](#)

[Employee Access](#)

[Outlook](#)

[Share Point](#)

[Superior Court of California
County of Stanislaus](#)

[Judicial Branch of California](#)

[Privacy](#)

[Terms of Use](#)

